

		Cross-Defendants contend they have done everything required of them under the parties’ agreements—including paying Mr. Tran \$237,846.29, sending monthly checks to cover the monthly mortgage payment, all utilities, and maintenance and taxes. (Mot. at 17:26-18:10.) Cross-Defendants also contend that it was Mr. Tran whose misconduct has damaged Cross-Defendants. (Mot. at 18:11-27, 19:9-15.) These facts do not preclude a claim based on fraud based on the misrepresentations alleged in the SACC. The court DENIES Cross-Complainant’s requests monetary sanctions in the amount of \$15,000, pursuant to Code of Civil Procedure section 128.5. (Opp. at 12:1-13:12.) Cross-Complainant fails to show compliance with the safe harbor provision in Section 128.5, subdivision (f)(1)(B). The court OVERRULES Cross-Complainant’s evidentiary objections. Objections (D), (E), (F), and (G) relate to non-evidentiary “Arguments” (see Objs. at 2:18) and a purported Compendium that is not part of the court record (see Objs. at 3:1-3). Cross-Complainant to give notice.
10	FLX Lighting, Inc. vs. P.D. Electric, Inc.	1. <u>Motion for Summary Judgment and/or Adjudication</u> 2. <u>Case Management Conference</u> TENTATIVE RULING: Plaintiff FLX Lighting, Inc., moves for summary judgment in its favor and against Defendants P.D. Electric, Inc., Peter DeFilippo, and Craig DiFilippo, on the Complaint. For the following reasons, the motion is DENIED. A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A plaintiff moving for summary judgment satisfies his or her initial burden by showing that each element of the cause of action in question has been “proved,” and hence that there is no defense thereto. (<i>Id.</i>, at p. 850.) A party cannot establish a prima facie

entitlement to summary judgment without showing both the fact *and the amount of damages*. (*Pajaro Valley Water Management Agency v. McGrath* (2005) 128 Cal.App.4th 1093, 1106)

Once the moving party meets that burden, the burden shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable issue as to an affirmative defense or cause of action. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

In ruling on a motion for summary judgment, the court must “consider all of the evidence” and all of the “inferences” reasonably drawn therefrom [citing Code Civ. Proc., § 437c, subd. (c)] and must view the evidence and inferences “in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) The moving party’s papers are to be strictly construed, while the opposing party’s papers are to be liberally construed. (*Committee to Save Beverly Highland Homes Ass’n v. Beverly Highland* (2001) 92 Cal.App.4th 1247, 1260.)

Breach of Contract

Plaintiff’s sole cause of action alleges Defendants breached a 11/04/2022 promissory note by failing to make the payments due, and that Plaintiff is owed the total balance of the note, \$63,993.48.

The elements of a cause of action for breach of contract are: (i) existence of the contract; (ii) Plaintiff’s performance or excuse for nonperformance; (iii) Defendant’s breach; and (iv) damage to plaintiff resulting therefrom. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811.)

Here, the existence of the parties’ contract is undisputed. (*See* Defs.’ Sep. St. No. 1.) There are, however, disputed facts as to whether Plaintiff performed the obligations under the Note and/or the amount of damages. (*See* Defs.’ Sep. St. No. 2 [and evidence cited therein].) The Note provides that Defendant P.D. Electric will pay Plaintiff a total amount of \$63,993.48 “for product materials received.” (*See* Pltf.’s Sep. St. No. 2.) Defendants submit evidence that Plaintiff did not, in fact, provide \$63,993.48 worth of product materials. (*See* DiFilippo Decl. ¶ 8, Exs. A-B.) In other words,

		Plaintiff did not “lend” the value of products it never provided to Defendant P.D. Electric. Plaintiff’s evidentiary objection Nos. 1-2 are OVERRULED. The remainder of the objections are not material to the disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).) Defendants to give notice.
11	Sanders vs. Pham	<u>Motion for Sanctions</u> 1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference TENTATIVE RULING: A. General Principles re MSJs A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i>, at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc. (“CCP”), § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].) A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55; <i>see also Union Bank v. Super. Ct.</i> (1995) 31 Cal.App.4th 573, 590 [finding